

**MANATEE COUNTY SHERIFF'S OFFICE
RETURN OF SERVICE**

Case No.	2021CC005737	Plaintiff:	Colonial Manor MHC Holdings LLC
Citation No.			
Certificate No.			
State:	Florida	Defendant:	Bernice Theresa Langford and if Deceased All
County:	Manatee		Unknown Parties Beneficiaries Heirs Successors and
Court:	Manatee County		
		Person to	Bernice Theresa Langford and if Deceased All
Plaintiff/Attorney:		Serve:	Unknown Parties Beneficiaries Heirs Successors and
Lutz Bobo & Telfair PA			
2 N Tamiami Trl		Address:	900 9 Ave E
Sarasota, FL 34236			Lot 95
			Palmetto, FL 34221

Type of Writ: 5 Day Summons, Complaint for Eviction, Disclosure Exhibit A, Five Day Notice of Termination of Tenancy for Non Payment of Rent Exhibit B, Certified Mail Receipt

The above referenced writ was received on August 13, 2021 at 10:27 AM and served the same by the undersigned officer at 5:30 PM on August 16, 2021. Service was completed at 900 9 Ave E Lot 95 Palmetto, FL 34221 in Manatee County, Florida.

POSTED: by attaching a copy of this writ, together with a copy of the complaint, petition, or other initial pleading, if any, in a conspicuous place on the property described within. The within named tenant could not be found and there was no person residing therein who is 15 years of age or older at the usual place of abode in Manatee County, Florida, upon whom service could be made, after the provisions of Sections 48.031(3)(b) or 78.065(2)(c) or 197.522(2)(a) of Florida Statutes have been met.

NOTES:

ATTEMPTS:

Attempt: 8/16/2021 @ 9:54 AM - 900 9 Ave E Lot 95 Palmetto, FL 34221

Note: no answer at door

Deputy: Greg Bass

CHARLES R. WELLS, SHERIFF
MANATEE COUNTY, FLORIDA

Sheriff's Number: 21010247

 10001313

Greg Bass 10001313

Deputy, Manatee County Sheriff's Office

IN THE COUNTY COURT IN AND FOR MANATEE COUNTY, FLORIDA
COLONIAL MANOR MHC HOLDINGS, LLC,

Plaintiff,

Case No: 2021CC5737
Civil Division
Landlord/Tenant Action

v.

**BERNICE THERESA LANGFORD, AND
IF DECEASED, ALL UNKNOWN PARTIES,
BENEFICIARIES, HEIRS, SUCCESSORS
AND ASSIGNS OF BERNICE THERESA
LANGFORD AND ALL PARTIES
HAVING OR CLAIMING TO HAVE ANY
RIGHT, TITLE, OR INTEREST IN THE
PROPERTY HEREIN DESCRIBED;
AND ALL UNKNOWN
UNAUTHORIZED OCCUPANTS,**

Defendants.

RECEIVED
CIVIL
2021 AUG 13 AM 10:27
SHERIFF
MANATEE COUNTY FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

**TO: BERNICE THERESA LANGFORD, AND
IF DECEASED, ALL UNKNOWN PARTIES,
BENEFICIARIES, HEIRS, SUCCESSORS
AND ASSIGNS OF BERNICE THERESA
LANGFORD AND ALL PARTIES
HAVING OR CLAIMING TO HAVE ANY
RIGHT, TITLE, OR INTEREST IN THE
PROPERTY HEREIN DESCRIBED
900 9th Avenue E., Lot 95
Palmetto, Florida 34221**

PLEASE READ CAREFULLY

You are being sued by **COLONIAL MANOR MHC HOLDINGS, LLC** to require you to move out of the place where you are living for the reasons given in the attached complaint.

You are entitled to a trial to determine whether you can be required to move, but you **MUST** do **ALL** of the things listed below. You must do them within five (5) days (not including Saturday, Sunday, or any legal holiday) after the date these papers were given to you or to a person who lives with you or were posted at your home.

THE THINGS YOU MUST DO ARE AS FOLLOWS:

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027806 \$80.00 de

(1) Write down the reason(s) why you think you should not be forced to move. The written reason(s) must be given to the clerk of the court at Manatee County Courthouse, 1115 Manatee Avenue West, Bradenton, Florida 34205.

(2) Mail or give a copy of your written reason(s) to:

Charles Lovings, Esq.
Lutz, Bobo & Telfair, P.A.
2155 Delta Boulevard, Suite 210-B
Tallahassee, Florida 32303

(3) Pay to the clerk of the court the amount of rent that the attached complaint claims to be due, along with the registry fee, in accordance with Florida Statute (3% of the first \$500, 1.5% of everything thereafter, effective 7/1/04) and any rent that becomes due until the lawsuit is over. If you believe that the amount claimed in the complaint is incorrect, you should file with the clerk of the court a motion to have the court determine the amount to be paid. If you file a motion, you must attach to the motion any documents supporting your position and mail or give a copy of the motion to the plaintiff/plaintiff's attorney.

(4) If you file a motion to have the court determine the amount of rent to be paid to the clerk of the court, you must immediately contact the office of the judge to whom the case is assigned to schedule a hearing to decide what amount should be paid to the clerk of the court while the lawsuit is pending.

IF YOU DO NOT DO ALL OF THE THINGS SPECIFIED ABOVE WITHIN 5 WORKING DAYS AFTER THE DATE THAT THESE PAPERS WERE GIVEN TO YOU OR TO A PERSON WHO LIVES WITH YOU OR WERE POSTED AT YOUR HOME, YOU MAY BE EVICTED WITHOUT A HEARING OR FURTHER NOTICE

(5) If the attached complaint also contains a claim for money damages (such as unpaid rent), you must respond to that claim separately. You must write down the reasons why you believe that you do not owe the money claimed. The written reasons must be given to the clerk of the court at the address specified in paragraph (1) above, and you must mail or give a copy of your written reasons to the plaintiff/plaintiff's attorney at the address specified in paragraph (2) above. This must be done within twenty (20) days after the date these papers were given to you or to a person who lives with you or were posted at your home. This obligation is separate from the requirement of answering the claim for eviction within five (5) working days after these papers were given to you or to a person who lives with you or were posted at your home.

THE STATE OF FLORIDA: To Each Sheriff of the State: You are commanded to serve this **summons** and a copy of the complaint in this lawsuit on the above-named defendant.

DATED on the 7 day of AUGUST, 2021

Angelina "Angel" Colonnese



Manatee County Court

By

Deputy Clerk

If you are a person with a disability who needs an accommodation in order to participate in a proceeding, you are entitled, at no cost to you, the provision of certain assistance. Please contact the Manatee County Jury Office, P.O. Box 25400, Bradenton, Florida 34206. Telephone (941) 741-4062. If you are hearing impaired, please call 711 within 2 working days of your receipt of your notice to appear in Court.

In and for Manatee County:

If you cannot afford an attorney, contact Gulfcoast Legal Services at (941) 746-6151 or www.gulfcoastlegal.org, or Legal Aid of Manasota at (941) 747-1628 or www.legalaidofmanasota.org. If you do not qualify for free legal assistance or do not know an attorney, you may email an attorney referral service (listed in the phone book) or contact the Florida Bar Lawyer Referral Service at (800) 342-8011.

NOTIFICACION DE DESALOJO/RESIDENCIAL

**A: BERNICE THERESA LANGFORD, AND
IF DECEASED, ALL UNKNOWN PARTIES,
BENEFICIARIES, HEIRS, SUCCESSORS
AND ASSIGNS OF BERNICE THERESA
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PROPERTY HEREIN DESCRIBED
900 9th Avenue E., Lot 95
Palmetto, Florida 34221**

SIRVASE LEER CON CUIDADO

Usted esta siendo demandado por **COLONIAL MANOR MHC HOLDINGS, LLC** para exigirle que desaloje el lugar donde reside por los motivos que se expresan en la demanda adjunta.

Usted tiene derecho a ser sometido a juicio para determinar si se le puede exigir que se mude, pero **ES NECESARIO** que haga **TODO** lo que se le pide a continuacion en un plazo de 5 dias (no incluidos los sabados, domingos, ni dias feriados) a partir de la fecha en que estos documentos se le entregaron a usted o a una persona que vive con usted, o se colocaron en su casa.

USTED DEBERA HACER LO SIGUIENTE:

(1) Escribir el (los) motivo(s) por el (los) cual(es) cree que no se le debe obligar a mudarse. El (Los) motivo(s) debera(n) entregarse por escrito al secretario del tribunal en el Manatee County Courthouse, 1115 Manatee Avenue West, Bradenton, Florida 34205.

(2) Enviar por correo o darle su(s) motivo(s) por escrito a:

Charles Lovings, Esq.
Lutz, Bobo & Telfair, P.A.
2155 Delta Boulevard, Suite 210-B
Tallahassee, Florida 32303

(3) Pagarle al secretario del tribunal el monto del alquiler que la demanda adjunta reclama como adeudado, asi como cualquier alquiler pagadero hasta que concluya el litigio. Si usted considera que el monto reclamado en la demanda es incorrecto, debera presentarle al secretario del tribunal una mocion para que el tribunal determine el monto que deba pagarse. Si usted presenta una mocion, debera adjuntarle a esta cualesquiera documentos que respalden su posicion, y enviar por correo o entregar una copia de la misma al demandante/abogado del demandante.

(4) Si usted presenta una mocion para que el tribunal determine el monto del alquiler que deba pagarse al secretario del tribunal, debera comunicarse de inmediato con la oficina del juez al que se le haya asignado el caso para que programe una audiencia con el fin de determinar el monto que deba pagarse al secretario del tribunal mientras el litigio este pendiente.

SI USTED NO LLEVA A CABO LAS ACCIONES QUE SE ESPECIFICAN NTERIORMENTE EN UN PLAZO DE 5 DIAS LABORABLES A PARTIR DE LA FECHA EN QUE ESTOS DOCUMENTOS SE LE ENTREGARON A USTED O A UNA PERSONA QUE VIVE CON USTED, O SE COLOQUEN EN SU CASA, SE LE PODRA DESALOJAR SIN NECESIDAD DE CELEBRAR UNA AUDIENCIA NI CURSARSELE OTRO AVISO

(5) Si la demanda adjunta tambien incluye una reclamacion por danos y perjuicios pecunarios (tales como el incumplimiento de pago del alquiler), usted debera responder a dicha reclamacion por separado. Debera exponer por escrito los motivos por los cuales considera que usted no debe la suma reclamada, y entregarlos al secretario del tribunal en la direccion que se especifica en el parrafo (1) anterior, asi como enviar por correo o entregar una copia de los mismos al demandante/abogado del demandante en la direccion que se especifica en el parrafo (2) anterior. Esto debera llevarse a cabo en un plazo de 20 dias a partir de la fecha en que estos documentos se le entregaron a usted o a una persona que vive con usted, o se coloquen en su casa. Esta obligacion es aparte del requisito de responder a la demanda de desalojo en un plazo de 5 dias a partir de la fecha en que estos documentos se le entregaron a usted o a una persona que vive con usted, o se coloquen en su casa.

CITATION D'EVICITION/RESIDENTIELLE

**A: BERNICE THERESA LANGFORD, AND
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PROPERTY HEREIN DESCRIBED
900 9th Avenue E., Lot 95
Palmelto, Florida 34221**

LISEZ ATTENTIVEMENT

Vous etes poursuivi par **COLONIAL MANOR MHC HOLDINGS, LLC** pour
exiger que vous evacuez les lieux de votre residence pour les raisons enumerees dans la
plainte ci-dessous.

Vous avez droit a un proces pour determiner si vous devez demenager, mais vous
devez, au prealable, suivre les instructions enumerees ci-dessous, pendant les 5 jours (non
compris le samedi, le dimanche, ou un jour ferie) a partir de la date ou ces documents ont
ete donnees a vous ou a la personne vivant avec vous, ou ont ete affichees a votre residence.

LISTE DES INSTRUCTIONS A SUIVRE:

(1) Enumerer par ecrit les raisons pour lesquelles vous pensez ne pas avoir a
demenager. Elles doivent etre remises au clerc du tribunal a Manatee County Courthouse,
1115 Manatee Avenue West, Bradenton, Florida 34205.

(2) Envoyer ou donner une copie au:

Charles Lovings, Esq.
Lutz, Bobo & Telfair, P.A.
2155 Delta Boulevard, Suite 210-B
Tallahassee, Florida 32303

(3) Payer au clerc du tribunal le montant des loyers dus comme etabli dans la plainte
et le montant des loyers dus jusqu'a la fin du proces. Si vous pensez que le montant etabli
dans la plainte est incorrect, vous devez presenter au clerc du tribunal une demande en
justice pour determiner la somme a payer. Pour cela vous devez attacher a la demande tous
les documents soutenant votre position et faire parvenir une copie de la demande au
plaignant/avocat du plaignant.

(4) Si vous faites une demande en justice pour determiner la somme a payer au clerc
du tribunal, vous devrez immediatement prevenir le bureau de juge qui presidera au proces
pour fixer la date de l'audience qui decidera quelle somme doit etre payee au clerc du
tribunal pendant que le proces est en cours.

**SI VOUS NE SUIVEZ PAS CES INSTRUCTIONS A LA LETTRE DANS LES 5 JOURS QUE
SUIVENT LA DATE OU CES DOCUMENTS ONT ETE REMIS A VOUS OU A LA**

**PERSONNE HABITANT AVEC VOUS, OU ONT ETE AFFICHES A VOTRE RESIDENCE,
VOUS POUVEZ ETRE EXPULSES SANS AUDIENCE OU SANS AVIS PREALABLE**

(5) Si la plainte ci-dessus contient une demande pour dommages pecuniaires, tels des loyers arrieres, vous devez y repondre separement. Vous devez enumerer par ecrit les raisons pour lesquelles vous estimez ne pas devoir le montant demande. Ces raisons ecrites doivent etre donnees au clerc du tribunal a l'adresse specifiee dans le paragraphe (1) et une copie de ces raisons donnee ou envoyee au plaignant/avocat du plaignant a l'adresse specifiee dans le paragraphe (2). Cela doit etre fait dans les 20 jours suivant la date ou ces documents ont ete presentes a vous ou a la personne habitant avec vous, ou affichees a votre residence. Cette obligation ne fait pas partie des instructions a suivre en reponse au proces d'eviction dans les 5 jours suivant la date ou ces documents ont ete presentes a vous ou a la personne habitant avec vous, ou affichees a votre residence.